

SENATE No. 502

The Commonwealth of Massachusetts

PRESENTED BY:

Joanne M. Comerford, (BY REQUEST)

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act establishing the right for every citizen to have a secret ballot.

PETITION OF:

NAME:

Jean Conway

DISTRICT/ADDRESS:

SENATE No. 502

By Ms. Comerford (by request), a petition (accompanied by bill, Senate, No. 502) of Jean Conway, for legislation to include a secrecy envelope in all vote by mail ballots. Election Laws.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act establishing the right for every citizen to have a secret ballot.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 As it stands now: If you vote by mail you fill out your ballot and put it into a return
2 envelope provided by the town clerk's office. You then sign your name to that envelope. Because
3 your ballot is in the signed envelope, your ballot is no longer secret.

4 The change: Include with each ballot a secrecy envelope. When you complete your
5 ballot, put it in the secrecy envelope and seal it. Then put that in the return envelope provided by
6 the town clerk and sign it. Now your ballot in the secrecy envelope can be placed with the other
7 ballots waiting to be counted and no one will know whose ballot it is.

8 Part 2 of the voting by mail. The return envelope sent with your ballot has your return
9 address on it. However that address is always the resident address not the mailing address. If
10 somehow the address to the town clerk's office gets unreadable, the ballot will be returned to the
11 sender's residence. The envelope will then be returned by the Post Office when it can not be
12 delivered and since the mailing address is unreadable in the first place that ballot will never get

13 to its destination and will not be counted. The solution is to put the voter's mailing address on the
14 return envelope. At least that will give the voter the chance to get it returned to them and
15 redelivered either by correcting the address of the town clerk's office or hand delivering it.